

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

JUDGE JAMES KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/
Third-Party Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**MULLINS BROS., LTD. RESPONSES TO THE LONG DEFENDANTS REQUESTS
FOR PRODUCTION**

Defendant Mullins Bros. Ltd. (“Defendant” or “Mullins Bros.”) hereby submits its Responses to the First Set of Requests for Admissions of The Long Defendants¹ subject to the General Objections and specific objections below.

¹ Angela J. Arumpanayil, Trustee; Al A. Balaa; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Anita Bird, Trustee; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Karen L. Cherup; Matthew A. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Christopher A. Clark; Kelly L. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Linda L. Fritz; Marilou M. Fritz; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Carolyn Gray; Gary Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Jennifer Lebold; Robert S. Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Marjory Rhoades; Ralph Shafer; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Mark S. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Dianne L. Williams; Margaret B. Williams; and Timothy J. Williams

GENERAL OBJECTIONS

1. Defendant objects to the Discovery Requests insofar as they purport to impose any requirement or discovery obligation upon Defendant other than as set forth in the Ohio Rules of Civil Procedure and the Local Rules of the Knox County Court of Common Pleas.

2. Defendant objects to the Discovery Requests to the extent that they seek to discover any information protected by the attorney-client privilege, the attorney work-product doctrine, and any other applicable restriction upon discovery. Defendant expressly reserves the right to withhold such information without prejudice thereto. Any inadvertent disclosures shall not be deemed to constitute a waiver of any privilege.

3. These Responses are supplied for use in this lawsuit and for no other purpose and are supplied subject to that limitation. Defendant reserves the right to object on any ground and at any time to the use of Defendant's Responses or the subject matter thereof in this proceeding or any other proceeding.

4. Defendant reserves the right to object on any ground and at any time to other discovery requests or other discovery procedures involving or relating to the subject of the Discovery Requests.

5. Defendant reserves the right to make any changes to these Responses as further information becomes available. By this reservation, Defendant does not, however, assume a continuing responsibility to update its Responses beyond the requirements of the applicable rules and orders of the Court.

6. Defendant objects to the Discovery Requests to the extent that they are cumulative or duplicative.

7. Defendant objects to the Discovery Requests to the extent that they seek to impose on Defendant an obligation to investigate or to discover information or documentary materials

from third parties. Defendant will not undertake such an investigation or discovery, nor be responsible for producing information and/or documents in the possession, custody, or control of any other persons or non-parties.

8. Defendant objects to Plaintiff's "Definitions" to the extent that they purport to alter, amend, add to, diminish, or otherwise differ from any definitions or instructions set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

9. Defendant objects to Plaintiff's "Instructions" to the extent that they purport to alter, amend, add to, diminish, or otherwise differ from any requirement or instructions set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

10. Defendant objects to the Discovery Requests to the extent that they require words or phrases to be interpreted in a manner different from or inconsistent with their ordinary and customary meaning.

11. Defendant objects to the definition of "Documents" to the extent that it differs from the requirements set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

12. Defendant incorporates each of these General Objections into the Responses below.

**DEFINITIONS FOR REQUESTS FOR ADMISSION AS PROVIDED BY THE
LONG DEFENDANTS**

1. "You" and "your" refers to Mullins Bros. Ltd.

2. "Documents" means all writings and things of any nature whatsoever, including originals and all non-identical copies and drafts thereof, in your possession, custody or control, regardless of where located, and includes, but is not limited to, contracts, agreements, memoranda, notes, correspondence, letters, communications, facsimiles, e-mails, telegrams, teletypes, telecopies, transmissions, messages (including, but not limited to, records, reports or memoranda

of telephone calls and conversations), reports, studies, summaries, analyses, minutes, diaries, calendars, logs, notes, instructions, charts, tables, brochures, records, orders, invoices, statements, bills, books of account, ledgers, financial statements, forecasts, work papers, notebooks, translations, photographs, drawings, tape recordings, computer-stored information which can be retrieved or placed into reasonably usable form, written communications and written evidence of oral communications, and any other “document” from which information can be obtained or translated, if necessary, by you through detection devices into reasonably usable form, the production of which may be required by Rule 34 of the Ohio Rules of Civil Procedure. In all cases where originals and/or non-identical copies are not available, “documents” also means identical copies of original documents and copies of non-identical copies.

3. “And” as well as “or” shall be construed disjunctively or conjunctively so as to bring within the scope of each request all documents, writings and things which might otherwise be construed to be outside its scope.

4. The use herein of the singular form of any noun or pronoun shall include where appropriate the plural thereof; the use herein of the masculine gender shall include where appropriate the feminine.

5. The term “person” as used herein shall mean an individual, corporation, partnership, or association, or any other business or governmental entity.

6. The terms “record,” “reflect” and “relate to” are intended to have the broadest possible scope so that all documents, including drafts, are included if they in any way constitute, contain, pertain to or mention the indicated subject or document. Whenever a document provides part, but less than all, of the information requested, such document should be produced along with all other documents that are related.

7. As used herein, the word “or” is inclusive, referring to any one or more of the

disjoined words or phrases and “any” and “all” also include “each and every.” The term “and” should not be construed to exclude from production any document simply because not every subject called for is discussed in the document. All references to the singular in this request shall be deemed to include the plural, and all references to the plural shall be deemed to include the singular. All references to the masculine gender shall be deemed to include the feminine and neuter.

8. “Dam” or “The Dam” refers to the Knox Cattle Company Dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio.

9. “Lake” or “The Lake” is the reservoir created by the Dam.

10. “The Phase VII Declaration” means the *Declaration of Building and Development Restrictions for the Landing Development Phase VII*, Revised filed with the Knox County Recorder on March 22, 2005, at File Number 2005-00002853, Book No. 935, Page No. 640.

11. “The Phase VIII Declaration” means the *Declaration of Building and Development Restrictions for the Landing Development Phase VIII* filed with the Knox County Recorder on March 13, 2007, File Number 2007-00002401, Book No. 1069, Page No. 118.

12. “The Phase VII Development” means the land in *The Landing Development, Phase VII*, as described in the Phase VII Declaration and recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records.

13. “The Phase VIII Development” means the land in *The Landing Development, Phase VIII*, as described in the Phase VIII Declaration and recorded in Plat Cabinet C, Page 60, of the Knox County, Ohio, Plat Records.

14. “This matter,” “this litigation,” “this action,” or “this case” mean case action number 20IN06-149, captioned *State of Ohio ex rel. Dave Yost, Ohio Attorney General v. The*

Landings Property Owners Association, Inc., et al., presently pending before the Knox County Common Pleas Court of Ohio.

15. “Mullins Bros.” means Mullins Bros., Ltd.

16. “Cross-Claim” means the Cross-Claim asserted by Mullins Bros., Ltd. in this litigation against The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners.

17. The “Landings Phase VII Property Owners” means those individuals who own lots in The Landing Development, Phase VII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

18. The “Landings Phase VIII Property Owners” means those individuals who own lots in The Landing Development, Phase VIII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

19. The “Landings Defendants” means The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners, collectively.

20. The “Long Defendants” means those Landings Defendants who are identified in footnote 1 of this Request.

**MULLINS RESPONSES TO THE LONG DEFENDANTS REQUEST FOR
PRODUCTION OF DOCUMENTS**

DOCUMENT REQUEST NO. 1.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 9 of the Cross-Claim that all Landings Defendants have an ownership interest in the Dam and the Lake by virtue of the restrictive covenants placed on their respective properties.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above,**

Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any.

DOCUMENT REQUEST NO. 2.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 9 of the Cross-Claim that all Landings Defendants are “owners” of the Dam.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any.**

DOCUMENT REQUEST NO. 3.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 36 of the Cross-Claim that the incongruity between the names the Landings Common Area Association, Inc. and The Landings Property Owners Association, Inc. is a drafting or scrivener’s error.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, upon information and belief, Mullins Bros. does not have possession of any such document beyond the transcript of attorney Robert Rauzi, which has been filed with the Knox County Court of Common Pleas.**

DOCUMENT REQUEST NO. 4.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 37 of the Cross-Claim.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 5.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 38 of the Cross-Claim.

RESPONSE: Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.

DOCUMENT REQUEST NO. 6.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 46 of the Cross-Claim.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.

DOCUMENT REQUEST NO. 7.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 48 of the Cross-Claim.

RESPONSE: Objection. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.

DOCUMENT REQUEST NO. 8.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 49 of the Cross-Claim.

RESPONSE: **Objection. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 9.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 51 of the Cross-Claim.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 10.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 53 of the Cross-Claim.

RESPONSE: **Objection. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 11.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 54 of the Cross-Claim.

RESPONSE: **Objection. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the**

General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.

DOCUMENT REQUEST NO. 12.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your allegation in paragraph 55 of the Cross-Claim.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response with redacted bills for attorneys fees as litigation develops.

DOCUMENT REQUEST NO. 13.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon the costs and attorney's fees you have incurred in defending this lawsuit and bringing claims against the Landings Phase VII and Phase VIII Property Owners.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.

DOCUMENT REQUEST NO. 14.

All documents supporting, related to, touching upon, mentioning, or in any way reflecting upon your alleged damages in this litigation.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive

to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.

DOCUMENT REQUEST NO. 15.

All documents related to, touching upon, mentioning, or in any way reflecting upon any action you took in furtherance of the statement in Section 4(B) of the Phase VII or VIII Declarations that you would require the owners of all lots to become members of a non-profit corporation.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.

DOCUMENT REQUEST NO. 16.

All documents related to, touching upon, mentioning, or in any way reflecting upon any action you took in furtherance of the statement in Section 4(B) of the Phase VII or VIII Declarations that you would require the owners of all lots to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

RESPONSE: Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.

DOCUMENT REQUEST NO. 17.

All documents related to, touching upon, mentioning, or in any way reflecting a non-profit corporation known as the Landings Common Area Association, Inc.

RESPONSE: Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.

DOCUMENT REQUEST NO. 18.

All documents related to, touching upon, mentioning, or in any way reflecting a non-profit corporation known as The Landings Property Owners Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 19.

All documents related to, touching upon, mentioning, or in any way reflecting the “common properties of The Landings Phase VII and VIII”, as that phrase was used in the Initial Articles of Incorporation of The Landings Property Owners Association, Inc. filed with the Ohio Secretary of State.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks information subject to the attorney-client privilege, the work product doctrine, and any other privilege or protection from disclosure. Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. . Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 20.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding the Landings Common Area Association, Inc.

RESPONSE: **Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.**

DOCUMENT REQUEST NO. 21.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding The Landings Property Owners Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 22.

All documents related to, touching upon, mentioning, or in any way reflecting any communication between or with you and any of the Landings Defendants regarding any homeowners' association.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

All documents related to, touching upon, mentioning, or in any way reflecting the Dam.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 23.

All documents related to, touching upon, mentioning, or in any way reflecting the Lake.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will provide relevant, non-privileged documents responsive to this request, if any. Mullins Bros. reserves the right to supplement this response as discovery develops.**

DOCUMENT REQUEST NO. 24.

All documents related to, touching upon, mentioning, or in any way reflecting any closing for the sale of any lot to any of the Landings Defendants.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 25.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a homeowners association.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 26.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a requirement to pay \$200 a year.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 27.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about the Landings Common Area Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 28.

All documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants that the Landings Common Area Association, Inc. shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, see documents produced in response to subpoena from Kidwell & Cunningham, 001-013. Further responding, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 29.

All documents related to, touching upon, mentioning, or in any way reflecting any articles of incorporation for the Landings Common Area Association, Inc.

RESPONSE: **Mullins Bros. also objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.**

DOCUMENT REQUEST NO. 30.

All documents related to, touching upon, mentioning, or in any way reflecting any regulations for the Landings Common Area Association, Inc.

RESPONSE: **Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to,**

and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.

DOCUMENT REQUEST NO. 31.

All documents related to, touching upon, mentioning, or in any way reflecting any bylaws for the Landings Common Area Association, Inc.

RESPONSE: Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.

DOCUMENT REQUEST NO. 32.

All documents related to, touching upon, mentioning, or in any way reflecting any tax returns for the Landings Common Area Association, Inc.

RESPONSE: Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.

DOCUMENT REQUEST NO. 33.

All documents related to, touching upon, mentioning, or in any way reflecting any bank accounts for the Landings Common Area Association, Inc.

RESPONSE: Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this request.

DOCUMENT REQUEST NO. 34.

All documents related to, touching upon, mentioning, or in any way reflecting any tax returns for The Landings Property Owners Association, Inc.

RESPONSE: Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. states that it does not possess documents responsive to this

request.

DOCUMENT REQUEST NO. 35.

All documents related to, touching upon, mentioning, or in any way reflecting any regulations for The Landings Property Owners Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 36.

All documents related to, touching upon, mentioning, or in any way reflecting any bylaws for The Landings Property Owners Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

DOCUMENT REQUEST NO. 37.

All documents related to, touching upon, mentioning, or in any way reflecting any bank accounts for The Landings Property Owners Association, Inc.

RESPONSE: **Objection. Mullins Bros. objects to this Request to the extent it seeks documents or information already in the possession of the Long Defendants. Subject to, and without waiving, these objections and the General Objections, above, Mullins Bros. will produce additional relevant non-privileged documents, if any.**

Respectfully submitted,

/s/ Kelli J. Amador

William M. Mattes (0040465)

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 22nd day of November 2023.

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